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California Governor Newsom Signs First-in-The-Nation Bill Banning Harmful Ultra-Processed Food in School Meals

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YONKERS, New York, Oct. 9 -- Consumer Reports posted the following news release on Oct. 8, 2025:

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California Governor Newsom signs first-in-the-nation bill banning harmful ultra-processed food in school meals

New law directs California to identify especially harmful ultra-processed foods to be phased out of schools

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SACRAMENTO, CA - California Governor Gavin Newsom signed legislation today that bans unhealthy ultra-processed foods (UPFs) in public schools. The new law, authored by Assemblymember Jesse Gabriel, establishes a definition of UPFs and directs experts at the California Department of Public Health to identify a subcategory of especially harmful ones to be phased out of public schools by 2035. The groundbreaking legislation was co-sponsored by Consumer Reports, the Environmental Working Group and Eat Real.

"Harmful ultra-processed foods that put students' health at risk and interfere with learning have no place in our schools," said Brian Ronholm, director of food policy at Consumer Reports. "These foods don't provide kids with the nutrients they need and are deliberately engineered to be addictive, which encourages unhealthy eating habits and overconsumption."

Ronholm continued, "California's new law will protect students by getting harmful ultra-processed foods off the menu and encouraging schools to provide healthier options that help fuel kids' bodies and brains for learning. We commend Assemblymember Gabriel for his steadfast leadership in making California a national leader in school nutrition and food safety."

Recent research has linked diets that include a lot of harmful ultra-processed foods -- such as soft drinks and packaged snacks -- to serious health risks, including cancer, cardiovascular disease, and Type 2 diabetes. An estimated 67 percent of the calories in food eaten by children, according to a study published in JAMA in 2021.

The new law defines ultra-processed foods as those "high in" saturated fat, or added sugar, or sodium, (or has a non-sugar sweetener), and contains one or more of certain industrial ingredients, including colors, flavors, sweeteners, emulsifiers, and thickening agents. Raw agricultural products, minimally processed foods, and pasteurized milk are exempt from the definition of UPFs.

Experts at the California Department of Public Health would then identify a subcategory of "UPFs of concern" to be phased out of school foods, based upon the following factors:

* whether the substance is banned, restricted, or subject to warnings in other states or outside the U.S.;

* whether the substance, based upon peer-reviewed evidence, is linked to cancer, cardiovascular disease, metabolic disease, developmental harms, reproductive harms, obesity, Type 2 diabetes, or other health harms associated with UPF consumption;

* whether the substance is hyper-palatable or may contribute to food addiction;

* whether the food meets the FDA definition for "healthy," and

* whether the food is a UPF due to a "common natural additive."

California's ban on the worst ultra-processed food from school meals is the latest example of the state's national leadership on food safety and school nutrition. In the last two years, the legislature has enacted a ban on Red Dye 3 and other toxic chemicals in food sold in the state and passed a ban on six other harmful synthetic dyes in school foods. Both bills were introduced by Assemblymember Gabriel and co-sponsored by Consumer Reports and the Environmental Working Group.

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Original text here: https://advocacy.consumerreports.org/press_release/california-governor-newsom-signs-first-in-the-nation-bill-banning-harmful-ultra-processed-food-in-school-meals/

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